

MASTER SERVICES AND SOFTWARE LICENSE AGREEMENT

This Master Services Agreement ("Agreement") is made effective as of February 1, 2024 by and between: Nexis Global Technologies FZ-LLC, a company registered in Dubai, UAE ("Provider"), and Apex Logistics International Corp, a company having its principal office in Abu Dhabi, UAE ("Customer").

1. Definitions

1.1 "Authorized Users" means Customer employees and designated contractors authorized to access the Services.

1.2 "Confidential Information" means all non-public technical, commercial, or financial information disclosed by either party to the other party.

2. Scope of Services and License Grant

Provider hereby grants to Customer a non-exclusive, non-transferable, revocable license to access the Enterprise Contract Suite during the Term, strictly for internal business operations.

3. Fees and Payment Terms

Customer shall pay the annual subscription fee of AED 350,000 within thirty (30) days from invoice date.

Late payments shall accrue interest at the rate of 1.5% per month or the maximum statutory rate permitted by law.

4. Term and Termination

4.1 Initial Term. This Agreement shall commence on the Effective Date and continue for an initial term of 24 months.

4.2 Termination for Cause. Either party may terminate this Agreement immediately upon written notice if the other party commits a material breach and fails to cure such breach within thirty (30) days of receiving written notice.

5. Standard of Care and Confidentiality

Each party agrees to safeguard the Confidential Information of the other party using the same degree of care, and in no event less than a reasonable degree of care, that it uses to protect its own confidential information of like nature. The confidentiality obligations herein shall survive the termination of this Agreement for a period of five (5) years.

6. Limitation of Liability

6.1 IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS, DATA, OR REVENUE, ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT.

6.2 The total aggregate liability of either party for all claims arising under this Agreement shall not exceed AED 100,000.

7. Indemnification Obligations

Provider agrees to defend, indemnify, and hold harmless Customer against any third-party claim alleging that the Services infringe any valid patent, trademark, or copyright registered in the United Arab Emirates.

8. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the Dubai International Financial Centre (DIFC). Any dispute arising out of or in connection with this contract shall be referred to and finally resolved by arbitration under the Arbitration Rules of the DIFC-LCIA Arbitration Centre.